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Case Number: 25PSCV03775 Hearing Date: July 30, 2026 Dept: 6

CASE

NAME: N.C.,

an individual, by and through her guardian ad litem Marissa Montoya v.

Claremont Unified School District, et al.

Defendant

Claremont Unified School District's Demurrer to Plaintiff's First Amended

Complaint

TENTATIVE

RULING

The Court OVERRULES Defendant Claremont Unified School District's Demurrer to the Second Cause of Action. Defendant Claremont Unified School District must file an Answer to the FAC within ten calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an emotional distress case. On October 17, 2025, plaintiff N.C. (Plaintiff) filed this action against defendants Claremont Unified School District (School District), Ana Velasquez (Velasquez) (collectively, Defendants) and Does 1 through 50, alleging causes of action for intentional infliction of emotional distress, negligence, and false imprisonment.

On May 13, 2026, after the Court sustained School District's demurrer to the Second Cause of Action of Plaintiff's Complaint with leave to amend, Plaintiff filed the operative First Amended Complaint (FAC), alleging causes of action for intentional infliction of emotional distress, negligent retention, and false imprisonment.

On June 16, 2026, School District demurred to the FAC. On July 17, 2026, Plaintiff opposed the Demurrer. On July 23, 2026, School District replied to Plaintiff's Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, supra, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

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demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v.*

Blackwell (1987) 189 Cal.App.3d 91, 94; see also Barnett v. Fireman's Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 ["[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Plaintiff's

Opposition improperly attributes the quotation "[a] school district that is negligent in the exercise of due care in supervising its students on school premises is liable for injuries proximately caused by its negligence" to Perna v. Conejo Valley Unified School District (1983) 143 Cal.App.3d 292, but no such language is found in that case. (Opp., 4:26-5:1.) This is the second time this has happened. (See Order Re: Court Ruling (4/23/26), Preliminary Issues, p. 2 of pdf; Kane Decl., Ex. D, 3:8-6:7.) Additionally, the misquoted language addressed in Plaintiffs' opposition to the prior demurrer is now alleged in paragraph 22 of the FAC. (FAC, ¶ 22.) However, Plaintiff filed a Notice of Errata to correct this issue. The Court will discuss the Opposition with Plaintiff's counsel further at the hearing on the Demurrer.

School

District's reply also has a problematic quotation, specifically: "[abolish] all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution, e.g., inverse condemnation, In the absence of a constitutional requirement, public entities may be held liable only if a statute (not including a character provision, ordinance, or regulation) is found declaring them to be liable. ...[T]he practical effect of this section is to eliminate any common law governmental liability for damages arising out of torts." (Reply, 4:6-12, bold in original.) School District provided no citation for this quotation. It appears to be taken from Becerra v. County of Santa Cruz (1998) 68 Cal.App.4th 1450, but the last sentence starting with "[T]he practical effect..." is nowhere to be found in that case. The Court

will discuss this matter further with School District's counsel at the hearing on the Demurrer.

DISCUSSION

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a), School District was required to meet and confer in person, by telephone, or by video conference before bringing this Demurrer. (Code Civ. Proc., § 430.41, subd. (a).) It is unclear from School District's counsel's declaration whether there was actually any attempt to meet and confer by these methods. The Court instead sees some emails, but no clear mention of having met and conferred in person, by telephone, or video conference regarding the subject matter of this Demurrer before filing it. (Kane Decl., ¶¶ 9-14, Exs. A-B.) Nevertheless, the Court may not overrule a demurrer for failure to adequately meet and confer. (Code Civ. Proc., § 430.41, subd. (a)(4).) The Court will therefore still consider the Demurrer, but admonishes School District's counsel to comply with the Code of Civil Procedure going forward.

Second Cause of Action – Negligent Retention

To state a cause of action for negligence, the plaintiff must allege facts demonstrating, "(1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. [Citations.]" (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) A negligent retention claim also requires duty and causation. (C.A. v. William S. Hart Union High Sch. Dist. (2012) 53 Cal.4th 861, 876-877 (C.A.).)

"A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Gov. Code, § 815.2, subd. (a).) "(a) Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person. (b) The liability of a public employee established by this part (commencing with Section 814) is subject to any defenses that would be available to the public employee if he were a private person." (Id., §

820.)

School District demurs to the Second

Cause of Action for negligent retention on the grounds that it fails to state facts sufficient to constitute a cause of action and on the grounds that it is uncertain. School District argues that under Government Code section 815, a public entity is not directly liable in tort absent a statute expressly imposing such liability. School District contends that the FAC cites only Government Code sections 815.2 and 820, which address vicarious liability for employees acting within the scope of employment and do not create direct entity liability for the District's own personnel or policy decisions, and that the pleading identifies no statute imposing a mandatory duty and fails to plead with particularity every fact essential to statutory liability. School District further argues that decisions whether to retain, discipline, reassign, or terminate a teacher are discretionary policy determinations immune under sections 820.2 and 815.2, subdivision (b). School District asserts that the pleading obscures whether Plaintiff seeks direct liability, vicarious liability, or both. School District notes that the Court previously sustained its demurrer for lack of statutory specificity and contends the amended pleading does not cure that defect.

In opposition, Plaintiff argues that

Government Code section 815.2, subdivision (a), itself supplies a sufficient statutory basis by imposing vicarious liability on a district for the tortious acts of its employees, and that no additional statute need be pleaded. Plaintiff contends controlling authority, including *C.A. v. William S. Hart Union High School District*, *Dailey*, and *Leger*, holds school districts liable under sections 815.2 and 820 and rejects the argument that further statutes must be alleged. Plaintiff characterizes the claim as one of vicarious liability rather than direct liability, arising from School District's retention of Velasquez after it received actual notice of her conduct, which exposed Plaintiff to further foreseeable harm. Plaintiff argues that a plaintiff need not identify specific employees at the pleading stage under C.A., and that the complaint adequately alleges the School District's duty, notice, and breach. Plaintiff also asserts that the Court's prior ruling already rejected School District's immunity arguments.

In reply, School District argues that the Opposition confirms the Second Cause of Action targets School District's own conduct, i.e., its alleged failure to remove, terminate, or reassign Velasquez, and is therefore an

impermissible direct negligence claim barred by section 815 absent statutory authorization. School District maintains that sections 815.2 and 820 govern only vicarious liability for employee acts within the scope of employment and cannot transform a direct negligence theory into a viable claim. School District contends that C.A., Leger, Perna, and Plaintiff's other authorities are distinguishable because they involved operational negligence or employee misconduct rather than discretionary personnel decisions, and that none dispenses with the statutory pleading requirement. School District argues that Plaintiff's concession that Velasquez did not act within the scope of employment is internally inconsistent with reliance on section 815.2, and that the challenged retention and discipline decisions are discretionary acts immune under sections 820.2 and 815.2, subdivision (b).

The Court finds the FAC alleges sufficient facts to state a cause of action for negligent retention. Contrary to School District's contentions, the California Supreme Court specifically held that Government Code section 815.2 authorizes a school district's vicarious liability for the negligent hiring, retention, and supervision of an employee. (C.A., supra, 53 Cal.4th at p. 875.) The FAC expressly cites Government Code section 815.2 as the basis for its negligent retention claim. (FAC, ¶¶ 10, 22.) This satisfies the statutory citation requirement, which was the basis for the Court sustaining the demurrer to the original Complaint. (Searcy v. Hemet Unified Sch. Dist. (1986) 177 Cal.App.3d 792, 802; Order Re: Court Ruling (4/23/26).) Plaintiff also does not need to plead the name or position of the specific administrative employee who committed the allegedly negligent act in this case. (C.A., supra, 53 Cal.4th at p. 872.) The FAC otherwise alleges facts indicating that School District's decision to retain Velasquez has caused Plaintiff emotional distress by continuous exposure to Velasquez and being terrified whenever she sees Velasquez. (FAC, ¶ 15.) Finally, the Court already rejected School District's immunity argument as unsuitable for resolution on demurrer. (Order Re: Court Ruling (4/23/26).)

Based on the foregoing, the Court **OVERRULES** the Demurrer to the Second Cause of Action. School District must file an Answer to the FAC within ten calendar days of the Court's order.

CONCLUSION

The Court **OVERRULES** Defendant Claremont Unified School District's Demurrer to the Second Cause of Action. Defendant Claremont Unified School

District must file an Answer to the FAC within ten calendar days of the Court's order.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.